Application No. 12436/86
by Susanne and Franz ALBISSER and Others
against Denmark

The European Commission of Human Rights sitting in private on 3 March 1988, the following members being present:

MM. J.A. FROWEIN, Acting President
C.A. NØRGAARD
S. TRECHSEL
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
J. CAMPINOS
H. VANDENBERGHE
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY

Mr. H.C. KRÜGER Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 2 July 1986 by Susanne and Franz Albisser and Others against Denmark and registered on 6 October 1986 under file N° 12436/86;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case, as submitted by the applicants, may be summarised as follows.

All eight applicants are members of the Church of Scientology. At the time of the introduction of the application they were all living in Copenhagen, Denmark. Before the Commission they are represented by Mr. Mourad Oussedik and Mrs. Brigitte Bouvier, lawyers practising in Paris, France.

The application concerns the applicants' expulsion from Denmark.

Susanne and Franz Albisser are both Swiss citizens, born in 1956 and 1949 respectively. They came to Denmark in 1976 and were granted one year residence permits, renewed by the Ministry of Justice each year. They have one daughter born in Denmark in 1978. Their application for a further renewal of their residence permits was rejected by the Aliens Supervisory Board (Tilsynet med Udlaendinge) on 2 March 1983. Both applicants appealed against this decision to the Ministry of Justice.

Julia Bernal-Breuer is a Spanish citizen, born in 1954. Her husband Henry George Breuer is a Swiss citizen, born in 1956. They

came to Denmark in 1983 and 1977 respectively and were granted one year residence permits. They have two children born in 1979 and 1986. Their application for renewal of their residence permits was rejected by the Directorate for Aliens (Direktoratet for Udlaendinge) on 28 August 1985. Both applicants appealed against this decision to the Ministry of Justice.

Katharine Eisenring-Schär and Alois Josef Eisenring are both Swiss citizens, born in 1954 and 1952 respectively. It appears that they came to Denmark in 1980. They received one year residence permits. They have two children born in 1975 and 1978. Their application for renewal of their residence permits was rejected by the Aliens Supervisory Board on 9 August 1982. Both applicants appealed against this decision to the Ministry of Justice.

Suzanne and André Camille Meyer are Swiss citizens, both born in 1951. They came to Denmark in 1977 and were granted one year residence permits which were subsequently renewed annually. They have three children born in 1974, 1976 and 1981. Their application for a further renewal of their residence permits was rejected by the Aliens Supervisory Board on 3 January 1983. Both applicants appealed against this decision to the Ministry of Justice.

As set out above all applicants appealed against the decisions of the Aliens Supervisory Board and the Directorate for Aliens respectively to the Ministry of Justice. Lengthy negotiations between the applicants and the Ministry of Justice commenced. Eventually, however, all the applicants' appeals were rejected and by letter of 27 June 1986 the applicants were informed by the Ministry of Justice that they were to leave Denmark no later than 1 July 1986.

On 27 June 1986 the applicants submitted to the Directorate for Aliens a request to have the administrative decision of the Ministry of Justice concerning their residence permits brought before the courts in accordance with Section 52 of the Aliens Act (Udlaendingeloven) which provides for a special procedure whereby an alien has the right to have certain specific decisions concerning residence permits and expulsion set out in this section brought before the courts by the Aliens Supervisory Board at the request of the alien concerned.

Insofar as it can be determined from the applicants' submissions it does not appear that the applicants' cases could be brought before the courts according to Section 52 of the Aliens Act.

The applicants did not institute proceedings in the High Court (Østre Landsret) against the Ministry of Justice in accordance with their constitutional rights set out in Section 63 of the Danish Constitution (Danmarks Riges Grundlov).

COMPLAINTS

The applicants invoke Articles 6 para. 1, 8 and 11 in conjunction with Articles 9 and 14 of the Convention as well as Article 4 of Protocol No. 4 to the Convention.

Under Article 6 para. 1 of the Convention the applicants complain that, although they could bring a case before the High Court, this remedy could not be taken into consideration for the purpose of Article 6 para. 1 since this action had no suspensive effect. Regarding the applicants' complaints, they did not therefore have at their disposal an impartial tribunal which could, in a fair hearing, determine the civil rights which allegedly were at stake.

The applicants also complain under Article 8 of the Convention that the decisions rejecting their application for residence permits

violate their right to respect for their family life. Several of the applicants came to Denmark in the mid 70's and the Government's decisions are without motivation. They have not been found guilty of any criminal offence or otherwise acted in a way which could allow the application of Article 8 para. 2. The violation under Article 8 is particularly grave in regard to those applicants who have small children, born in Denmark with no ties with any other country.

In conjunction with Articles 9 and 14 of the Convention the applicants furthermore invoke Article 11 alleging that the Church of Scientology in Denmark is one of only four mother churches of the Church of Scientology and the existence of this religious association constitutes the very reason for their settling in Denmark. The departure of the applicants from Denmark would rupture the long-standing links with their numerous friends united in this association.

Finally, under Article 4 of Protocol No. 4 the applicants allege that the motives behind the refusal to renew the residence permits were merely to get rid of persons belonging to the Church of Scientology. The measure taken should therefore be considered as collective expulsion of the applicants since a large number of their friends also belonging to the Church of Scientology have likewise been requested to leave Denmark.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 2 July 1986 and registered on 6 October 1986.

On 13 July 1987 the Commission declared inadmissible an application concerning 17 other members of the Church of Scientology who had been requested to leave Denmark under circumstances similar to those of the present applicants (No. 12097/86, Dec. 13.7.87, unpublished).

On 29 September 1987 the applicants were requested to inform the Commission whether they, in the light of the above decision, intended to pursue their application further. The Commission, however, did not receive any reply to this request. Furthermore, the Commission observes that despite reminders sent to the applicants on 29 October 1987, 18 November 1987 and 21 December 1987 (twice by registered mail) the applicants have not resumed contact with the Commission and thus failed to provide the information requested by the Commission.

REASONS FOR THE DECISION

In the circumstances described above the Commission considers that the applicants must be regarded as having lost interest in their application. Furthermore the Commission finds that there are no reasons of a general character affecting the observance of the Convention which necessitate a further examination of the case.

For these reasons, the Commission

DECIDES TO STRIKE THE APPLICATION OFF ITS LIST OF CASES

Secretary to the Commission — Acting President to the Commission

(H. C. KRUGER) — (J. A. FROWEIN)